Mozy Outdoors

CAPE FEAR REGION · NEW HANOVER COUNTY, NC

BEFORE YOU HIT THE WATER

Rental Agreement & Liability Waiver

Please read each section carefully and complete all fields before your rental begins. This waiver must be signed by every adult renter in your party. After submission, you will continue to booking and payment.

01 The Vessel

You are renting a **GoBoat** — an inflatable, fully electric watercraft owned, insured, and operated by Mozy Ventures LLC ("Mozy Outdoors"). Mozy Outdoors offers both the GoBoat Single (1-person) and GoBoat Double (2-person) depending on availability and your booking selection.

You are responsible for operating the vessel within the occupancy, weight, and speed limits of the specific model rented. These limits will be confirmed at check-in and are printed on the vessel.

02 Rental Rules & Operator Policy

- **Minimum rental age is 18.** You must be at least 18 years old to book and be the named renter on this agreement.
- **Operators aged 16–17** may operate a GoBoat only if an adult aged 21 or older is simultaneously renting a second GoBoat as part of the same booking and remains within visual range at all times.
- **No one under the age of 16** may operate this vessel under any circumstance.
- **Do not exceed the rated occupancy or weight capacity of your vessel.** These limits vary by model and are non-negotiable. Confirm your vessel's limits at check-in.
- **Children under 13** must wear a properly fitted, U.S. Coast Guard-approved personal flotation device (PFD) at all times while the vessel is underway. PFDs are provided — their use is your

responsibility.

- **No alcohol** may be consumed by the operator before or during operation.
- The vessel must remain within the designated operating area as briefed at check-in. Do not approach dams, spillways, commercial vessel channels, or restricted zones.
- The emergency shut-off lanyard must be attached to the operator's person at all times while underway.
- **Maximum rental duration is 4 hours.** Please return to dock before battery depletion.
- Return the vessel to the dock in the condition received. Report any damage immediately.

> This vessel is governed to 5 mph and is not capable of towing persons or watercraft. Do not attempt to tow anyone or anything.

03 Battery Installation — Cape Fear Region

The battery will be installed by Mozy Outdoors staff prior to your departure. **Do not attempt to remove or reinstall the battery yourself.** If the battery appears improperly seated, is making unusual sounds, or the motor is not responding normally, do not operate the vessel — notify Mozy Outdoors staff immediately.

Before departing, confirm:

- Battery is fully seated and the connection is secure
- Motor responds to throttle at speed setting 1
- Emergency shut-off lanyard is attached and functional
- PFDs are on board and accessible

A short GoBoat walkthrough video is available on the Mozy start page and may also be posted at the dock. Watching it before your first rental is strongly encouraged.

04 Assumption of Risk

I understand that operating a watercraft on open water involves inherent risks including but not limited to: adverse weather conditions, wakes from other vessels, submerged hazards, personal injury, and drowning. These risks exist even when all safety precautions are followed.

I acknowledge that the Cape Fear River, basin, and surrounding inland waterways may have **commercial and recreational boat traffic** that can produce significant wakes and wash. I agree to maintain awareness of other vessels, avoid shipping channels and restricted areas, and brace for wakes when necessary.

I acknowledge that these waterways may contain **oyster beds and submerged shell deposits** that can cause cuts to skin or puncture an inflatable vessel if grounded. I agree to avoid shallow areas, follow the designated operating zone, and remain alert to water depth.

I voluntarily choose to participate in this activity and assume full responsibility for all risks associated with my use of the GoBoat and the waterway, known and unknown, including risks resulting from the actions or inactions of others on the water.

I acknowledge that the GoBoat is an inflatable watercraft designed for calm recreational use. I agree to operate it within the stated limitations of the specific model rented and within my own skill and ability.

05 Release of Liability

In consideration of being permitted to rent and operate a GoBoat watercraft through Mozy Ventures LLC, I, on behalf of myself and my heirs, executors, administrators, and assigns, hereby release, waive, discharge, and covenant not to sue **Mozy Ventures LLC**, its owners, officers, employees, agents, and partner property operators (collectively, "Released Parties") from any and all liability, claims, demands, actions, or causes of action arising out of or related to any loss, damage, or injury — including death — that may be sustained by me or any minor in my care, whether caused by the negligence of the Released Parties or otherwise, while participating in this rental activity or while on the premises of the rental location.

I agree that this release shall be binding upon me and my heirs, next of kin, executors, administrators, and assigns.

> If you are signing on behalf of a minor in your care, your signature below constitutes acceptance of these terms on behalf of that minor and yourself as their guardian.

06 Indemnification

I agree to indemnify and hold harmless the Released Parties from any loss, liability, damage, cost, or expense — including reasonable attorney's fees — that they may incur due to my participation in this activity, whether caused by my negligence or otherwise, including any claims made by third parties arising from my use of the vessel.

07 Acknowledgments

Please check each box to confirm your understanding:

- ☐ I have watched or will watch the GoBoat orientation video before departing. I understand basic vessel operation, how to attach the emergency lanyard, and how to safely return to dock.
- ☐ I confirm the boat's battery has been installed by the host and the vessel is ready to operate. I will not attempt to remove or reinstall the battery.
- ☐ I confirm that I will not exceed the **rated occupancy or weight capacity** of the vessel I am renting. I understand these limits vary by model and will be confirmed at check-in.
- ☐ If any passenger in my party is under 13 years of age, I confirm they will wear a U.S. Coast Guard-approved PFD at all times while underway.
- ☐ I confirm that any operator of this vessel is at least **18 years old**, or is aged 16–17 with a 21+ adult simultaneously operating a second GoBoat as part of this booking.
- ☐ I have read and understand the Assumption of Risk, Release of Liability, and Indemnification sections above. I sign this agreement freely and voluntarily, without duress.

Renter Information & Signature

FIRST NAME _____ LAST NAME _____

EMAIL ADDRESS

DATE OF BIRTH

RENTAL DATE

SIGNATURE (draw with finger or mouse)

DATE SIGNED